



NATIONAL GUARD BUREAU
OFFICE OF THE UNITED STATES PROPERTY AND FISCAL OFFICER, NORTH DAKOTA
PO BOX 5511, BISMARCK, NORTH DAKOTA 58506-5511

PERFORMANCE WORK STATEMENT (PWS)

FOR

Catered/Food Services

1.0 General:

1.1 Scope: The contractor shall provide all plant, labor, materials, and transportation necessary to provide Catered Meals/Food Services to North Dakota Army National Guard Soldiers.

1.2 Background: 1-188th ADA meals from 28 May -11 June 2026 at Grand Forks Armory Complex (GFAC).

1.3 Period of Performance (PoP): 28 May-01 June 2026 and 06-11 June 2026

1.4 General Information:

1.4.1 Place and Performance of Services:

Grand Forks Armed Forces Reserve Center (1501 S 48th St. Grand Forks, ND 58201)

28 May: Dinner 1730-1830

29 May: Breakfast 0630-0730; Dinner 1730-1830.

30 May: Breakfast 0630-0730; Dinner 1730-1830.

31 May: Breakfast 0630-0730; Dinner 1730-1830.

01 June: Breakfast 0630-0730. **[NO DINNER]**.

02-05 June **[NO MEALS]**.

06 June: **[NO BREAKFAST]**; Dinner 1730-1830.

07 June: Breakfast 0630-0730; Dinner 1730-1830.

08 June: Breakfast 0630-0730; Dinner 1730-1830.

09 June: Breakfast 0630-0730; Dinner 1730-1830.

10 June: Breakfast 0630-0730; Dinner 1730-1830.

11 June: Breakfast 0630-0730; Dinner 1730-1830.

The contractor shall provide services between the hours of (unless otherwise noted in paragraph 1.4.1): Breakfast 0630-0730; Dinner 1730-1830 on 28 May - 11 June 2026. Performance shall be at Grand Forks Armed Forces Reserve Center (1501 S 48th St. Grand Forks, ND 58201).

The contractor shall at all times maintain an adequate work force for the uninterrupted

performance of all tasks defined within this PWS. When hiring personnel, the contractor shall keep in mind that the stability and continuity of the work force are essential.

1.4.1.1 Telework: The Government does not permit the contractor to telework in support of this requirement. In furtherance of Continuity of Operations Planning (COOP), a telework program may be enacted to ensure that the Government's mission-critical operations stay operational during times of national emergency or incidents of national significance. Telework shall be at no additional cost to the Government.

1.4.1.2 Unscheduled gate closures by the Security Police may occur at any time causing all personnel entering or exiting a closed installation to experience a delay. This cannot be predicted or prevented. Contractors are not compensated for unexpected closures or delays. Vehicles operated by contractor personnel are subject to search pursuant to applicable regulations. Any moving violation of any applicable motor vehicle regulation may result in the termination of the contractor employee's installation driving privileges.

1.4.1.3 The contractor's employees shall become familiar with and obey the regulations of the installation; including fire, traffic, safety and security regulations while on the installation. Contractor employees should only enter restricted areas when required to do so and only upon prior approval. All contractor employees shall carry proper identification with them at all times, and shall be subject to such checks as may be deemed necessary. The contractor shall ensure compliance with all regulations and orders of the installation, which may affect performance. The Government reserves the right to direct the removal of an employee from Government property or revoke access to Government systems for misconduct, security reasons, or any overt evidence of communicable disease. Removal of contractor employees for reasons stated above does not relieve the Contractor from responsibility for total performance of this contract.

1.4.2 Recognized Holidays: The following are recognized United States (US) holidays. The contractor shall not perform services on these days:

- 1.4.2.1 New Year's Day: January 1st
- 1.4.2.2 Martin Luther King, Jr.'s Birthday
- 1.4.2.3 President's Day
- 1.4.2.4 Memorial Day
- 1.4.2.5 Juneteenth National Independence Day: June 19th
- 1.4.2.6 Independence Day: July 4th
- 1.4.2.7 Labor Day
- 1.4.2.8 Columbus Day
- 1.4.2.9 Veteran's Day: November 11th
- 1.4.2.10 Thanksgiving Day
- 1.4.2.11 Christmas Day: December 25th

1.4.3 Quality Control (QC): Meals shall be prepared in accordance with applicable State Health Laws, Regulations and Policies

1.4.4 Quality Assurance (QA): Reserved

1.4.5 Installation Access and Security Requirements. The contractor shall comply with all applicable installation/facility access and local security policies and procedures, which may be obtained from the COR. The contractor and all associated subcontractor employees shall provide all information required for background checks to meet installation access requirements to be accomplished by installation Provost Marshal Office, Director of Emergency Services, or Security Office. The contractor shall ensure compliance with all personal identity verification requirements as directed by Department of Defense (DoD), Headquarters Department of Army (HQDA) and/or local policy (see PWS 6.0). Should the Force Protection Condition (FPCON) change, the Government may require changes in contractor security matters or processes.

1.4.5.1.1 Homeland Security Presidential Directive (HSPD)-12 Background Investigation Requirements: Reserved

1.4.5.1.2 Trusted Associate Sponsorship System (TASS): Reserved

1.4.5.1.3 Reserved

1.4.5.1.4 Reserved

1.4.5.1.5 Reserved

1.4.5.1.5.1 Failure to comply with these requirements may result in withholding of final payment.

1.4.5.1.6 Reserved

1.4.5.2 For contractors that do not require a CAC, but require access to a DoD facility or installation: Contractor and all associated sub-contractors employees shall comply with adjudication standards and procedures using the National Crime Information Center Interstate Identification (NCIC-III) and Terrorist Screening Database (TSDB) (Army Directive 2014-05), and applicable installation, facility and area commander installation/facility access, and local security policies and procedures (provided by a Government representative).

1.4.5.3 Awareness Training (AT) Level 1: All contractor employees, including subcontractor employees, requiring access to Army installations, facilities, and controlled access areas shall complete AT Level 1 training within 30 calendar days after contract start date and within 30 calendar days of new employees commencing performance. The contractor shall submit certificates of completion for each affected contractor and subcontractor employee to the KO within 15 calendar days after completion of training by each employee or subcontractor personnel. AT Level 1 awareness training is available at the following website: <https://jko.jten.mil/courses/at11/launch.html>.

1.4.5.5 Communications Security/Information Technology (COMSEC/IT) Security. All communications with DoD organizations are subject to COMSEC review. All telephone communications networks are continually subject to intercept by unfriendly intelligence organizations. DoD has authorized the military departments to conduct COMSEC monitoring

and recording of telephone calls originating from, or terminating at, DoD organizations. Therefore, the contractor is advised that any time contractor personnel place or receive a call they are subject to COMSEC procedures. The contractor shall ensure wide and frequent dissemination of the above information to all employees dealing with DoD information. The contractor shall abide by all Government regulations concerning the authorized use of the Government's computer network, including the restriction against using the network to recruit Government personnel or advertise job openings.

1.4.5.6 Reserved

1.4.5.6.1 Comply with the command's Acceptable Use Policy (AUP) for Government owned IS and sign an AUP prior to or upon account activation.

1.4.5.6.2 Reserved

1.4.5.6.3 Mark and safeguard files, output products, and storage media per classification level and disseminate them only to individuals authorized to receive them with a valid need to know.

1.4.5.6.4 Protect IS and IS peripherals located in their respective areas in accordance with physical security and data protection requirements.

1.4.5.6.5 Practice safe network and Internet operating principles and take no actions that threaten the integrity of the system or network.

1.4.5.10 Reserved

1.4.5.11 OPSEC Training: In accordance with AR 530-1, Operations Security, new contractor employees shall complete Level I OPSEC training within 30 calendar days of their reporting for duty and annually thereafter. The contractor shall submit certificates of completion for each contractor employee to the KO within 15 calendar days after completion of training. Level 1 OPSEC training is available at <https://securityawareness.usalearning.gov/opsec/index.htm>.

1.4.6 Physical Security. The contractor shall safeguard all Government property provided for contractor use. At the close of each work period, Government facilities, equipment and materials shall be secured.

1.4.6.1 Key Control. Reserved

1.4.7 Special Qualifications: Reserved

1.4.9 Contract Manager (CM): The contractor shall designate a CM who shall ensure performance under this contract. The name of this person, and an alternate who shall act for the contractor when the CM is absent, shall be designated in writing to the KO. The CM or alternate shall have full authority to act for the contractor on all contract matters relating to daily operation of this contract. The CM shall work through the KO, to resolve issues, receive technical instructions, and ensure adequate performance of services. The CM shall ensure that contractor employees do

not perform any services outside the scope of the contract without an official modification issued by the KO. The CM shall ensure contractor employees understand that services performed outside the scope of the contract are performed wholly at the expense of the contractor.

1.4.10 Identification of Contractor Employees: All contractor personnel attending meetings, answering Government telephones and working in other situations where their contractor status is not obvious to third parties are required to identify themselves as such to avoid creating an impression that they are Government employees. The contractor shall ensure that all documents or reports produced by contractor personnel are suitably marked as contractor products or that contractor participation is appropriately disclosed. The contractor's status as a "contractor" shall be predominantly displayed in all correspondence types (to include signature blocks on e-mail) and dealings with Government or non-Government entities. Contractor personnel shall wear identification badges distinguishing themselves as such. The badges shall have the company name, employee name and the word "contractor" displayed.

1.4.10.1 The contractor shall retrieve all identification media (including vehicle passes) from its employees who depart employment for any reason. The contractor shall return all identification media (i.e., badges and vehicles passes) to the KO within 14 days of an employee's departure

1.4.11. Combating Trafficking in Persons: The United States Government has adopted a zero tolerance policy regarding trafficking in persons. Contractors and contractor employees shall not engage in severe forms of trafficking in persons during the period of performance of the contract; procure commercial sex acts during the period of performance of the contract; or use forced labor in the performance of the contract. The Contractor shall notify its employees of the United States Government's zero tolerance policy, the actions that will be taken against employees for violations of this policy. The contractor shall take appropriate action, up to and including termination, against employees or subcontractors that violate the US Government policy as described at FAR 22.17.

1.4.12 Contractor Travel. Reserved

1.4.13 Data Rights. Reserved

1.4.14 Organizational Conflicts of Interest (OCI): Reserved

1.4.15 Phase In / Phase Out Periods. Reserved

2.0 Definitions and Acronyms:

2.1 Definitions:

2.1.1 Contractor: A supplier or vendor awarded a contract to provide specific supplies or service to the Government. The term used in this contract refers to the prime.

2.1.2 Defective Service: A service output that does not meet the standard of performance associated with the PWS.

2.1.3 Deliverable: Anything that can be physically delivered and includes non-manufactured things such as meeting minutes or reports.

2.1.4 Key Personnel: Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

2.1.5 Physical Security: Actions that prevent the loss or damage of Government property.

2.1.6 Quality Assurance: The Government procedures to verify that services being performed by the Contractor are performed according to acceptable standards.

2.1.7 Quality Control: All necessary measures taken by the Contractor to ensure that the quality of an end product or service shall meet contract requirements.

2.2 Acronyms:

AFARS	Army Federal Acquisition Regulation Supplement
AR	Army Regulation
AT/OPSEC	Antiterrorism/Operational Security
CM	Contract Manager
COR	Contracting Officer Representative
DA	Department of the Army
DD254	Department of Defense Contract Security Classification Specification
DFARS	Defense Federal Acquisition Regulation Supplement
DoD	Department of Defense
FAR	Federal Acquisition Regulation
GFP/M/E/S	Government Furnished Property/Material/Equipment/Services
HQDA	Headquarters, Department of the Army
KO	Contracting Officer
NGB	National Guard Bureau
OCI	Organizational Conflict of Interest
PII	Personally Identifiable Information
POC	Point of Contact
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QC	Quality Control

3.0 Government Furnished Property, Material, Equipment and Services (GFP/M/E/S): The Government will provide the property, material, equipment, and/or services listed below solely for the purpose of performance under this contract:

3.1 Property: The Government will furnish the necessary workspace for the contractor to perform services outlined in this PWS to include meal prep space, counters, and tables.

CATERERS/FOOD SERVICES WILL ONLY BE ALLOWED TO USE THE REFRIDGERATOR, FREEZER, AND OVEN (WARMING ONLY). THERE WILL BE NO COOKING OF RAW FOOD ALLOWED. YOU MUST LEAVE THE KITCHEN LIKE IT WAS WHEN YOU FIRST ARRIVED. NOT ALL AREAS HAVE ALL OF THESE ITEMS AVAILABLE FOR USE. PLEASE CHECK WITH NDARNG TO ENSURE WHAT YOU REQUIRE IS AVAILABLE.

3.2 Materials: Reserved

3.3 Equipment: Reserved

3.4 Services: Reserved

3.5 Utilities: All utilities in the facility will be available for the contractor's use in the performance of this contract. The contractor shall instruct employees in utilities conservation practices. The contractor shall operate under conditions that preclude the waste of utilities, which include turning off the water faucets or valves after using the required amount.

4.0 Contractor Furnished Property, Materials, and Equipment (CFP/M/E): Reserved

4.1 General: Except for those items specifically stated to be Government-Furnished in Paragraph 3.0, the contractor shall furnish everything required to perform these services as indicated in Paragraph 1.1.

5.0 Requirements:

5.1 Breakfast shall include the following basic items:

Chilled juice
Assorted dry cereal
Pancakes with syrup and/or French toast
Eggs
One Meat (bacon, ham, sausage)
Potato
Toast
Jelly
Butter/Margarine patties
Pastries
Fresh Fruit
Coffee
Milk

5.1.2 The contractor is expected to use their professional judgment in creating an acceptable breakfast menu.

5.2 Lunch & Dinner Meals shall include the following basic items:

One Entrée
Potato
Cooked Vegetable
Salad
Fruit
Bread/Rolls
Butter/Margarine patties
Milk
Coffee
Fruit drink
Dessert from 5.2.2

5.2.1 Acceptable dinner meal entrees include but are not limited to the following items. The contractor may include other acceptable entrees. Acceptability will be determined by the Contracting Officer.

Baked Fish
Baked Ham
Roast Turkey
Roast Beef
Roast Pork Loin
Meat Loaf
Baked, BBQ, or Fried Chicken
Theme Meal (Mexican, Italian, German fare)
Salisbury steak
Pulled Pork
Spaghetti

5.2.2 Desserts may consist of one of the following.

Pie
Cake
Cookies
Bars
Ice Cream

6.0 Other requirements. The contractor shall:

6.1 Provide all dinnerware required to serve the meals (plates, bowls, utensils, napkins, cups, etc.)

6.2 Remove and dispose of all trash that accumulates during the meal periods.

6.3 Clean the serving and eating areas after each meal

6.4. Provide all standard condiments appropriate for the meals (salt, pepper, sugar, artificial sweetener, coffee creamer, catsup, mustard, steak sauce, etc.)

6.5 Provide a proposed menu with their offer. Menus will be reviewed and approved by the Contracting Officer.

7.0 Meal requirements:

7.1 Number of meals required at each meal period:

7.1.1 The below numbers correlate to feeding numbers for each date and meal.

Grand Forks Armed Forces Reserve Center (1501 S 48th St. Grand Forks, ND 58201)

28 May: Dinner 1730-1830 (174).

29 May: Breakfast 0630-0730 (174); Dinner 1730-1830 (174).

30 May: Breakfast 0630-0730 (178); Dinner 1730-1830 (178).

31 May: Breakfast 0630-0730 (178); Dinner 1730-1830 (160).

01 June: Breakfast 0630-0730 (162). **[NO DINNER]**.

02-05 June **[NO MEALS]**.

06 June: **[NO BREAKFAST]**; Dinner 1730-1830 (168).

07 June: Breakfast 0630-0730 (170); Dinner 1730-1830 (170).

08 June: Breakfast 0630-0730 (180); Dinner 1730-1830 (180).

09 June: Breakfast 0630-0730 (182); Dinner 1730-1830 (182).

10 June: Breakfast 0630-0730 (182); Dinner 1730-1830 (182).

11 June: Breakfast 0630-0730 (183); Dinner 1730-1830 (183).

7.1.2 The actual number of meals required may change during the period of performance, however the number of meals required is subject to no more than a 10% increase or decrease from the numbers specified; the contractor shall be paid for the actual number of meals served at any given meal, but for no less than the 90% of the number specified in the purchase order for any given meal. The contractor shall be given a 24 hour notice if there is a change in the number of meals required. The contractor shall only accept changes authorized by the Contracting Officer.

7.1.3 Weather may affect the meal requirements. Any delays in the mission requirements caused by weather may necessitate the requirement for additional meals outside of the periods listed in Paragraphs 7.1.1. The Contracting Officer will contact the contractor if additional meals are required.

7.1.4 Early start/finish: if mission requirements are started and/or completed early, the Contracting Officer will contact the contractor to determine an equitable settlement for the additional meal periods and/or the meal period(s) not required.

7.2 Meals will be served at the following times:

28 May: Dinner 1730-1830.

29 May: Breakfast 0630-0730; Dinner 1730-1830.

30 May: Breakfast 0630-0730; Dinner 1730-1830.

31 May: Breakfast 0630-0730; Dinner 1730-1830.

01 June: Breakfast 0630-0730. **[NO DINNER]**.

02-05 June **[NO MEALS]**.

06 June: **[NO BREAKFAST]**; Dinner 1730-1830.

07 June: Breakfast 0630-0730; Dinner 1730-1830.

08 June: Breakfast 0630-0730; Dinner 1730-1830.

09 June: Breakfast 0630-0730; Dinner 1730-1830.

10 June: Breakfast 0630-0730; Dinner 1730-1830.

11 June: Breakfast 0630-0730; Dinner 1730-1830.

8.0 Contact Information:

8.1 The successful offeror will provide a point of contact upon contract award, to include name, phone number, and email address (if available).

8.2 The contractor will be provided the name and phone number of an on-site point of contact upon contract award. The on-site POC will not have the authority to change contract requirements, but will relay all necessary changes, questions, problems, and other contract issues to the ND Army National Guard Contracting Officer. The on-site POC will be responsible for any installation access authorizations required by the contractor (For contractors that do not require CAC, but require access to a DoD facility or installation: Contractor and all associated sub-contractors employees shall comply with adjudication standards and procedures using the National Crime Information Center Interstate Identification Index (NCIC-III) and Terrorist Screening Database (TSDB) (Army Directive 2014-05/AR 190-13), applicable installation, facility and area commander installation/facility access and local security policies and procedures (provided by government representative)).

8.3 The responsible ND Army National Guard Contract Specialist is John M. Norway, (701) 791-2295, email john.m.norway2.civ@mail.mil.